

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Asselman	Team: Squad #16	CCRB Case #: 202304627	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 05/14/2023 7:35 PM	Location of Incident: I-678 S (Van Wyck Expressway), near Exit 12A	18 Mo. SOL 11/14/2024	Precinct: 110		
Date/Time CV Reported Wed, 05/24/2023 3:38 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/24/2023 3:38 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Nicolle Aracena	07420	973916	110 PCT
2. PO Christopher Sanchez	23298	948129	QM SEC

Officer(s)	Allegation	Investigator Recommendation
A . PO Christopher Sanchez	Abuse: Police Officer Christopher Sanchez threatened an individual with the use of force.	A . Substantiated
B . PO Nicolle Aracena	Abuse: Police Officer Nicolle Aracena improperly used her body-worn camera.	B . Substantiated
C . PO Christopher Sanchez	Abuse: Police Officer Christopher Sanchez improperly used his body-worn camera.	C . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On May 24, 2023, an anonymous complainant filed this complaint with the CCRB via phone and a reporting non-witness, § 87(2)(b) also filed this complaint via the CCRB's website. On May 25, 2023, duplicate complaints were filed via the CCRB's website by reporting non-witnesses, § 87(2)(b) and § 87(2)(b) and three anonymous complainants, and via telephone by one anonymous complainant. On May 26, 2023, an anonymous reporting non-witness filed a duplicate complaint via the CCRB's website. On July 24, 2023, reporting non-witness § 87(2)(b) filed a duplicate complaint via telephone.

On May 14, 2023, PO Christopher Sanchez, and PO Nicolle Aracena, both of the 110th Precinct, pursued a moped operated by an unidentified individual, on the Van Wyck Expressway in Queens. PO Sanchez threatened the individual with force using his marked NYPD vehicle (**Allegation A: Abuse of Authority, Substantiated**). PO Sanchez and PO Aracena failed to activate their BWCs during this incident (**Allegations B and C: Abuse of Authority, Substantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

The CCRB is in possession of one cellphone video of this incident (BR 01, 02). The CCRB is in possession of no additional videos.

Based on PO Sanchez and PO Aracena's testimonies, no arrests were made or summonses issued as a result of this incident (BR 03, 04).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Christopher Sanchez threatened an individual with the use of force.

Allegation (B) Abuse of Authority: Police Officer Nicolle Aracena improperly used her body-worn camera.

Allegation (C) Abuse of Authority: Police Officer Christopher Sanchez improperly used his body-worn camera.

CCRB obtained a copy of cellphone footage submitted by § 87(2)(b) originally posted on Instagram by user § 87(2)(b) who did not respond to contact attempts. This footage depicts marked NYPD vehicle #3887, driving southbound on the center lane of the Van Wyck Expressway in Queens (BR 01). It depicts an individual wearing a black hoodie driving a moped on the left most lane of the expressway. The NYPD vehicle veers left towards the moped, causing it to drive close to the concrete median left of the lane, over the continuous yellow line while driving alongside the moped. At 00:08 the moped switches to the right most lane from behind the marked NYPD vehicle and the marked NYPD vehicle moves in the same direction, with the rear quarter of the passenger side of the NYPD vehicle close to the front of the moped, until both vehicles are out of frame. It appears that both vehicles were going in the direction of the shoulder lane before going out of frame. At 00:14, the moped is briefly back in frame, driving back to the left most lane. The NYPD vehicle drives towards it and appears to jerk to the left, towards the moped, and then straightens out. The NYPD vehicle then enters the left lane as its brake lights turn on, directly in front of the moped, cutting it off. At 00:23, the moped drives behind the NYPD vehicle as the moped switches from the far-left lane to the far-right lane. With its brakes engaged and directly in front of the moped, the NYPD vehicle moves from the far-left lane to the middle lane. At 00:24, while the moped is on the dotted white line between the middle lane and far-right lane and the NYPD vehicle is in the middle lane, the NYPD vehicle appears to turn right towards the moped with the passenger

side appearing to come within inches of the moped. The NYPD vehicle straightens out and the moped is out of frame at 00:25. At 00:28 the moped is seen riding on the zebra lanes and exiting the expressway near a sign that reads, "Exit 12 A." Throughout this video, no police lights are visible, or sirens and loudspeakers are audible.

PO Sanchez testified that he observed a group of approximately five Hispanic male individuals operating mopeds and dirt bikes, without helmets, eye protection, and license plates (BR 03). They performed "wheelies" and spun the vehicles' tires. He did not recall where he observed this group of individuals, or whether he discussed his observations with PO Aracena. PO Sanchez, who was operating the NYPD vehicle assigned to him and PO Aracena, activated the lights and sirens to initiate a stop, but the individuals fled in different directions. The male individual in the black hoodie (captured in the cellphone footage) fled onto a service road leading onto the Van Wyck Expressway. PO Sanchez pursued this individual because he felt that was the safest option, as there would be no pedestrians and the traffic would move in one direction. He intended to stop the individual and place him under arrest because he fled from the initial attempted stop. PO Sanchez temporarily deactivated the lights and sirens which stopped working as he tried to re-activate them, once he was on the expressway. PO Sanchez drove alongside the individual and gave him verbal commands to stop, through his open window. The individual shook his head "no." PO Sanchez moved in front of him to slow him down and guide him to a safer portion of the expressway where he could stop. The individual moved to the right lane and PO Sanchez believed he was going to pull over. The individual then moved back to the left lane and PO Sanchez drove in front of him again to try and stop him. The individual moved right again and exited the expressway. PO Sanchez did not activate his BWC during this incident and did not make a memo book entry.

PO Aracena testified she and PO Sanchez were canvassing for a male individual, involved in a shooting (BR 04). PO Aracena did not recall any details about the shooting or its precise location. Aside from the description of the suspect being a male, PO Aracena did not receive any descriptions of the individual involved in this shooting. She did not receive any descriptions of vehicles that may have been involved. She did not receive any additional descriptions of individuals or vehicles involved in the shooting. As she and PO Sanchez drove on the Van Wyck Expressway service road, they observed a group of eight or nine individuals operating mopeds and switching lanes without signaling. None of the individuals wore helmets. PO Aracena and PO Sanchez did not attempt to stop the group and did not have any discussion about their observations. Shortly after, the group dispersed, and the individual in the black hoodie (captured in the cellphone footage) "engaged" her and PO Sanchez' vehicle by driving alongside them on the left then swerving to the right. PO Sanchez instructed the individual to stop, twice, through the driver's side window. The driver did not comply with the command and continued to drive on the expressway briefly, before exiting. PO Aracena and PO Sanchez resumed their patrol. PO Aracena did not activate her BWC because the vehicle stop was unsuccessful. She did not make a memo book entry regarding this incident.

The second page of the event summary for the 110th Precinct on May 14, 2023, lists multiple calls involving shots fired. It shows one call which occurred at 6:09PM, near exit 10 of Grand Central Parkway, which runs parallel to the Van Wyck Expressway (BR05).

Patrol Guide Procedure 221-15, which pertains to vehicle pursuits, and which has been redacted from the public Patrol Guide, prohibits MOS from ramming, placing a department vehicle in a position to be struck by the pursued vehicle, and driving alongside the pursued vehicle, when attempting a vehicle stop. NYPD Executive Agency Counsel Rob Fodera confirmed via email that the current version of Procedure 221-15 still includes the aforementioned prohibitions (BR 06, 07).

Patrol Guide Procedure 221-01 dictates that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances (BR 08).

It is undisputed that PO Sanchez pursued a moped, operated by the unidentified victim. § 87(2)(g)

In the cellphone footage obtained by CCRB, PO Sanchez is seen driving alongside the individual, placing the department vehicle in a position to be struck by braking directly in front of the moped, and abruptly turning the vehicle towards the moped while coming within inches of the moped. PO Sanchez also did not have any emergency lights or sirens activated. § 87(2)(g)

It is recommended that **Allegation A** be **Substantiated**.

Patrol Guide Procedure 212-123 states that it is mandatory for MOS to activate their BWC prior to engaging in any police action, which can include vehicle stops and investigative encounters, public interactions that escalate and become adversarial (BR 09).

§ 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegations B and C** be **Substantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- The victim involved in this complaint is unidentified. The investigation is unable to obtain his CCRB history.
- PO Aracena has been a member of service for one year and has been a subject in one CCRB complaint and two allegations, none of which were substantiated. § 87(2)(g)
- PO Sanchez has been a member of service for fourteen and has been a subject in nineteen CCRB complaints and 77 allegations (BR 12), of which two were substantiated:

- 201800652 involved substantiated allegations of force and abuse of authority against PO Sanchez. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- The victim involved in this complaint is unidentified. The investigation is unable to request records of any Notice of Claim being filed in regards to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 16

Investigator:	Sara Asselman	Inv. Sara Asselman	01/17/2024
	Signature	Print Title & Name	Date

Squad Leader:	Patrick Yu	IM Patrick Yu	01/19/2024
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date